

ments of them could not be defeated (*a*). But now that by 1 & 2 Vict. c. 110, such interests are liable to execution, or to be charged by a judge's order, the distinction must be considered as obsolete (*b*).

[25. **Bankruptcy.**— Under the Bankruptcy Act, 1883 (*c*), a *fraudulent* conveyance of a person's property, or any part thereof, is an act of bankruptcy, as also is any conveyance of property which would be void as a fraudulent preference, and a voluntary settlement is void as against the trustee in Bankruptcy if the settlor become bankrupt within *two years*; and if the settlor become bankrupt within *ten years* it is void, unless it can be shown that he was solvent at the time without the aid of the property comprised in the settlement, and that the interest of the settlor in the settled property passed to the trustee of the settlement on the execution thereof.

26. **Settlement of future property on marriage.**— Under the Bankruptcy Act, 1883 (*d*), a covenant or contract made in consideration of marriage for the future settlement on the settlor's wife or children of any property wherein he had not at the date of the marriage any estate or interest, and not being property of the wife, is on his becoming bankrupt before the property is actually transferred pursuant to the covenant or contract, void against the trustee in the bankruptcy.]

27. **Whether a Court of equity will enforce specific performance of agreements under seal where there is no valuable consideration.**— As every *agreement under hand and seal* carries a consideration upon the face of it, and will support an action at law, the inference has not unfrequently been drawn, that equity in such a case, though the trust was not perfectly created, will specifically execute the contract in favour of volunteers (*e*). But equity never enforced a covenant to stand seised to the *use of a stranger in blood*; and, if we examine

(*a*) *Grogan v. Cooke*, 2 B. & B. 230; *Cochrane v. Chambers*, Amb. 79, note 1; *Rider v. Kidder*, 10 Ves. 368; *Dundas v. Dutens*, 2 Cox, 235; 1 Ves. J. 196.

(*b*) *Norcutt v. Dodd*, Cr. & Ph. 100; *Sims v. Thomas*, 12 A. & E.

536; *Barrack v. McCulloch*, 3 K. & J. 110.

[(*c*) 46 & 47 Vict. c. 52, ss. 4 & 47.] See *Ex parte Dawson*, 19 L. R. Eq. 433.

[(*d*) 46 & 47 Vict. c. 52, s. 47.]

(*e*) See *Wiseman v. Roper*, 1 Ch.